



Sale of Venison (Scotland) Act 1968

1968 CHAPTER 38

An Act to make provision for the registration of dealers in venison, for the keeping of records by such dealers; and for matters in connection therewith.

[3rd July 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Registration
of venison
dealers etc.

1.—(1) Subject to the provisions of this Act,

- (a) every local authority shall maintain a register of persons carrying on business in their area as dealers in venison; and
- (b) after the expiry of twelve months from the passing of this Act no person shall sell (whether by wholesale or retail) or offer or expose for sale or have in his possession for sale at any premises in the area of a local authority any venison unless he is entered for the time being in accordance with the provisions of this Act in the register maintained by the authority under this section:

Provided that this subsection shall not apply to the sale, offer or exposure for sale by any person to a registered venison dealer of the carcase or part of the carcase of a deer lawfully killed or taken.

(2) Every local authority shall, on application being made to them for that purpose by any person carrying on or proposing to carry on business in their area as a dealer in venison and on payment of a fee of ten shillings, or such other fee as may be

prescribed, register that person as a dealer in venison and issue to him a certificate of registration.

(3) Every local authority by whom certificates of registration are issued under this section shall, as soon as may be after the first day of January in each year, make a return to the Red Deer Commission in the prescribed form showing the names and addresses of the persons who on that day were entered in the register maintained by them under this section as dealers in venison.

(4) Any person who contravenes any of the provisions of subsection (1)(b) of this section shall be guilty of an offence against this Act and shall be liable on summary conviction to a fine not exceeding £20.

2.—(1) Every registered venison dealer shall keep or cause to be kept a book wherein shall be entered records in the prescribed form, of all purchases and receipts of venison by him, and shall enter or cause to be entered in such book forthwith the prescribed particulars of such purchases and receipts, which shall include where possible particulars as to the sex and species of deer, but which shall not include particulars as to price.

Registered
venison
dealers to
keep records.

(2) Any person authorised in writing in that behalf by the Secretary of State or by the Red Deer Commission and showing his written authority when so requested may inspect any book kept in pursuance of this section; and it shall be the duty of the dealer and of every person keeping such book to produce for inspection by such authorised person such book and also all venison on the premises, together with all invoices, consignment notes, receipts and other documents (including copies thereof where the originals are not available) which may be required to verify any entry in such book, and to allow such authorised person to take copies of such book or documents or extracts therefrom.

(3) Any book kept by a person in pursuance of subsection (1) of this section shall be kept by him until the end of the period of three years beginning with the day on which the last entry was made in the book and any such documents as are mentioned in the last foregoing subsection shall be kept for a period of three years beginning with the date of the entry to which they refer.

(4) Any registered venison dealer who fails to comply with any provision of this section, and any person who obstructs any person entitled under this section to inspect any book or document in the making of such inspection, or who knowingly

or recklessly makes or causes to be made in such book any entry which is false or misleading in any material particular, shall be guilty of an offence under this Act and shall be liable on summary conviction to a fine not exceeding £20.

Interpretation. 3. For the purposes of this Act unless the context otherwise requires—

“deer” means deer of any species;

“local authority” means the council of any county or any large burgh and in this Act a reference to a county council shall be construed, in relation to counties combined for the purposes mentioned in section 118(1) of the Local Government (Scotland) Act 1947, as a reference to the joint county council;

1947 c. 43.

“prescribed” means prescribed by regulations made by statutory instrument by the Secretary of State subject to annulment in pursuance of a resolution of either House of Parliament;

“registered venison dealer” means a person who is registered in pursuance of section 1 of this Act; and

“venison” means the carcase or any part of the carcase of a deer but does not include venison packed, canned or processed for sale or prepared for consumption at a meal.

**Short title
and extent.**

4. This Act may be cited as the Sale of Venison (Scotland) Act 1968 and shall extend to Scotland only.